

CITY OF CHEYENNE, WYOMING

AND

CLARITY TELECOM, LLC



CABLE FRANCHISE AGREEMENT

CABLE FRANCHISE AGREEMENT

This Cable Franchise Agreement ("Franchise") is entered into by and between the City of Cheyenne, Wyoming (hereinafter "Grantor" or the "City") and Clarity Telecom, LLC, locally known as Vast Broadband (hereinafter "Grantee"). Grantor and Grantee are sometimes referred to hereinafter together as the "parties."

WHEREAS, Grantor finds that Grantee has the financial, legal and technical ability sufficient to provide services, facilities and equipment necessary to meet the future cable-related needs of the community; and

WHEREAS, Grantor and Grantee have complied with all federal and state-mandated procedural and substantive requirements pertinent to this Franchise.

NOW, THEREFORE, in consideration of the mutual promises made herein, and other good and valuable consideration, the receipt and adequacy of which are hereby acknowledged, Grantor and Grantee do hereby agree as follows:

SECTION 1. DEFINITIONS

The following terms shall be defined as set forth in Section 602 of the Cable Act (47 U.S.C. § 522) -- "Affiliate," "Cable Operator," "Cable Service," "Cable System," "Channel," "Franchise" and "Person" -- and "Franchise Fee" shall be as defined in Section 622 of the Cable Act (47 U.S.C. § 542).

For the purpose of this Franchise the following terms, phrases, words and their derivations shall have the meaning ascribed to them below. When not inconsistent with the context, words used in the present tense include the future, words in the plural number include the singular number, and words in the singular number include the plural number. The word "shall" is mandatory and "may" is permissive. Words not defined shall be given their common and ordinary meaning.

1.1 "Basic Service" means the lowest level of Cable Service that includes, at a minimum, all broadcast channels.

1.2 "Cable Act" means Title VI of the Communications Act of 1934, as amended.

1.3 "City Council" means the City Council, the governing body of the City, or its successors.

1.4 "FCC" means the Federal Communications Commission, or its successors.

1.5 "Franchise Area" means the area within the jurisdictional boundaries of the City.

1.6 "Gross Revenues" means any and all revenues, as determined in accordance with generally accepted accounting principles ("GAAP"), received directly or indirectly by Grantee, or by Grantee's Affiliates which are Cable Operators providing Cable Services over the Cable System in the Franchise Area, derived from the operation of Grantee's Cable System to provide Cable Service in the Franchise Area. Gross Revenues include, by way of illustration and not limitation,

monthly and other fees charged Subscribers for Cable Services including Basic Service, other Tiers of Cable Service, video on demand, pay-per-view and per-program channels, Cable Service installation fees, Cable Service equipment rentals or sales and Franchise Fees.

Notwithstanding the foregoing, "Gross Revenues" shall not include: (i) any taxes, fees or assessments collected by Grantee from Subscribers for pass-through to a government agency, including, without limitation, the FCC user fee, or any sales or utility taxes, but Franchise Fees are included; (ii) unrecovered bad debt; (iii) deposits paid by Subscribers; and (iv) any exclusions available under applicable law.

The parties acknowledge that Grantee may need to allocate Gross Revenues between Cable Services (which are subject to the Franchise Fee) and non-Cable Services (which are not subject to the Franchise Fee but may be subject to other fees and/or taxes), when these two types of services are bundled together in a discounted package offered to Subscribers. Grantee shall make such allocation in accordance with GAAP, but in no event shall Grantee allocate Gross Revenues between Cable Services and non-Cable Services where such services are bundled together in a discounted package offered to Subscribers for the purpose of evading its Franchise Fee obligations under this Franchise.

1.7 "Right-of-Way" means each of the following which have been dedicated to the public or are hereafter dedicated to the public and maintained under public authority and located within the City: streets, roadways, highways, avenues, lanes, alleys, bridges, sidewalks, easements and similar public property and areas.

1.8 "State" shall mean the State of Wyoming.

1.9 "Subscriber" means any Person who or which elects to subscribe to, for any purpose, Cable Service provided by Grantee by means of or in connection with the Cable System and whose premises are physically wired and lawfully activated to receive Cable Service from Grantee's Cable System.

1.10 "Tier" means a group of Channels for which a periodic subscription fee is charged.

SECTION 2. GRANT OF FRANCHISE

2.1 Grant

(A) The City hereby grants to Grantee a nonexclusive authorization to make reasonable and lawful use of the Rights-of-Way to construct, operate, maintain, reconstruct and rebuild a Cable System for the purpose of providing Cable Service subject to the terms and conditions set forth in this Franchise.

(B) No rights shall pass to Grantee by implication. Without limiting the foregoing, by way of example and not limitation, this Franchise shall not include or be a substitute for:

(1) Any other permit or authorization required for the privilege of transacting and carrying on a business within the City that may be required by the generally applicable and non-discriminatory ordinances and laws of the City;

(2) Any generally applicable and non-discriminatory permit, agreement, construction bond or authorization required by the City for all Right-of-Way users in connection with operations on or in Rights-of-Way or public property including, by way of example and not limitation, street cut permits; or

(3) Any required generally applicable and non-discriminatory permits or agreements for occupying any other property of the City or private entities to which access is not specifically granted by this Franchise including, without limitation, permits and agreements for placing devices on poles, in conduits or in or on other structures.

(C) This Franchise is intended to convey limited rights and interests only as to those Rights-of-Way in which the City has an actual interest. It is not a warranty of title or interest in any Right-of-Way; it does not provide Grantee with any interest in any particular location within the Right-of-Way; and it does not confer rights other than as expressly provided in the grant hereof.

2.2 Compliance with Law

Grantor and Grantee shall conform to all applicable state and federal laws and rules as they become effective. Each and every term, provision or condition herein and Grantee's rights hereunder are subject to state law, federal law, and the police powers of the City to adopt and enforce generally applicable and non-discriminatory ordinances, resolutions, rules and regulations enacted pursuant thereto necessary to the safety, health, and welfare of the public ("Police Powers"); provided, however, that such hereinafter enacted ordinances, resolutions, rules and regulations shall be reasonable and not materially modify the terms of this Franchise. This Franchise is a contract and neither party may take any unilateral action that materially changes the mutual promises and covenants contained herein. Pursuant to the foregoing, any conflict between the provisions of this Franchise and the lawful exercise of the City's Police Powers shall be resolved in favor of the latter, but in any other conflict between Grantor's ordinances, resolutions, rules or regulations and the provisions of this Franchise, the provisions of this Franchise shall govern.

2.3 Effective Date and Term of Franchise

(A) This Franchise and the rights, privileges and authority granted hereunder shall take effect on the date last signed by a party (the "Effective Date"), and shall terminate ten (10) years later unless terminated sooner as hereinafter provided.

(B) The grant of this Franchise shall have no effect on Grantee's duty under the prior franchise agreement or any ordinance in effect prior to the Effective Date to indemnify or insure Grantor against acts and omissions occurring during the period that the prior franchise agreement was in effect, nor shall it have any affect upon liability to pay all Franchise Fees, taxes, permit fees

and other payments to the City (for any prior years) that were due and owed under a prior franchise agreement.

SECTION 3. FRANCHISE FEE PAYMENT AND FINANCIAL CONTROLS

3.1 Franchise Fee

(A) Amount of Fee. Grantee shall pay to Grantor an annual Franchise Fee in an amount equal to five percent (5%) of the annual Gross Revenues. The Franchise Fee may be passed through to Subscribers as a line item on Subscriber bills or otherwise as Grantee chooses, consistent with federal law. Grantee shall not deduct from the Franchise Fee any items listed under Section 622(g)(2) of the Cable Act (47 U.S.C. § 542(g)(2)). Grantee reserves its right to offset from the Franchise Fee any payment made to Grantor if permitted by applicable law and Grantor reserves its right to challenge the legality of any such offset.

(B) Payment of Fee. Payment of the Franchise Fee due Grantor shall be made on a quarterly basis, within forty-five (45) days of the close of each calendar quarter and transmitted by electronic funds transfer to a bank account designated by Grantor. The payment period and the collection of the Franchise Fee that is to be paid to Grantor pursuant to the Franchise shall commence on the Effective Date. Each payment shall be accompanied by a written report to the City containing an accurate statement in summarized form, as well as in detail with all categories, of Grantee's Gross Revenues and the computation of the payment amount.

(C) Limitation on Recovery. The period of limitation for recovery of any Franchise Fee payable hereunder shall be three (3) years from the date on which payment by Grantee was due.

3.2 Acceptance of Payment

No acceptance of any payment shall be construed as an accord by the City that the amount paid is, in fact, the correct amount, nor shall any acceptance of payments be construed as a release of any claim the City may have for further or additional sums payable or for the performance of any other obligation of Grantee.

3.3 Audits

No more frequently than every three (3) years, upon sixty (60) days prior written notice, the City, including the City's Auditor or his/her authorized representative, shall have the right to conduct an independent audit (or other engagement involving similar, mutually-agreed procedures) of Grantee's records produced and maintained in the ordinary course of business reasonably related to Gross Revenues and the payment of Franchise Fees. If such audit shows that Franchise Fee payments have been underpaid by five percent (5%) or more for the period of such audit, Grantee shall pay the total cost of such audit, such cost not to exceed seven thousand five hundred dollars (\$7,500.).

3.4 Late Payments

In the event any Franchise Fee or other payment due is not timely received, including any underpayment discovered as a result of an audit, Grantee shall pay interest on the amount due calculated from the date the payment was originally due until the date the City receives the payment at the lesser of (a) the interest rate set forth in Wyo. Stat. § 40-14-106(e) or (b) the prime rate of interest as reported by the Wall Street Journal on July 1st of the previous calendar year, plus two percent (2%), rounded to the nearest full percent.

3.5 Tax Liability

Payment of the Franchise Fees under this Franchise shall not exempt Grantee from the payment of any other generally applicable and non-discriminatory license fee, permit fee, tax or charge on the business, occupation, property or income of Grantee that may be lawfully imposed by the City, the state or the United States.

3.6 Alternative Compensation

In the event the obligation of Grantee to compensate the City through Franchise Fees is eliminated by state or federal law, and provided that such change in law contemplates that the City may be lawfully compensated by a Cable Operator for use of the Rights-of-Way in some other manner, and unless otherwise provided by state or federal law, then the Grantee shall provide such alternative compensation to the City, provided that in any event such alternative compensation does not exceed five percent (5%) of Grantee's Gross Revenues.

SECTION 4. ADMINISTRATION AND REGULATION

4.1 Authority

The City shall be vested with the power and right to reasonably regulate the exercise of the privileges permitted by this Franchise in the public interest, or to delegate that power and right, or any part thereof, to the extent permitted under federal, state and local law, to any agent in its sole discretion.

4.2 Rate Regulation

Grantor shall have the right to exercise rate regulation to the extent authorized by law, or to refrain from exercising such regulation for any period of time, at the sole discretion of Grantor. If and when exercising rate regulation, Grantor shall abide by the terms and conditions set forth by the FCC. Nothing herein shall be construed to limit Grantee's ability to offer or provide bulk rate discounts or promotions.

4.3 Inspection of Records

Grantee shall permit any duly authorized representative of Grantor, upon receipt of advance written notice, to examine during normal business hours and on a non-disruptive basis any and all

of Grantee's records maintained by Grantee as is reasonably necessary to ensure Grantee's compliance with the material terms of this Franchise. Such notice shall specifically reference the subsection of the Franchise that is under review so that Grantee may organize the necessary books and records for easy access by Grantor. Grantee shall not be required to maintain any books and records for Franchise compliance purposes longer than one (1) year except for those pertaining to Franchise Fees, which shall be retained for three (3) years. Grantee shall not be required to provide Subscriber information in violation of Section 631 of the Cable Act. Grantor agrees to treat as confidential any books, records or maps that constitute proprietary or confidential information to the extent Grantee makes Grantor aware of such confidentiality. If Grantor believes it must release any such confidential books, records, or maps in the course of enforcing this Franchise, or for any other reason, it shall advise Grantee in advance so that Grantee may take appropriate steps to protect its interests. If Grantee requests that Grantor continue to oppose such release, then until otherwise ordered by a court or agency of competent jurisdiction, Grantor agrees that, to the extent permitted by state and federal law, it shall deny access to any of Grantee's books and records marked confidential, as set forth above, to any Person, and Grantee shall reimburse Grantor for all reasonable costs and attorneys' fees incurred in any action, legal or other proceedings related to same. If Grantee does not request that Grantor oppose such release, then Grantor shall make an independent judgment with respect to such release, and Grantee shall not be liable for any costs related to same.

4.4 Maps Required

Grantee shall at all times maintain a complete set of as-built maps showing the exact location of all Cable System equipment and facilities in the Right-of-Way, but excluding detail on proprietary electronics contained therein and Subscriber drops. Upon advance written notice to Grantee, the City's authorized representative(s) or agent(s) shall have the right to inspect such maps at Grantee's local office at a time mutually agreeable to the City and Grantee. Due to confidentiality and safety concerns, the City shall not be allowed to make copies of or take possession of any of Grantee's maps.

4.5 Reserved Authority

Both Grantee and the City reserve all rights they may have under the Cable Act and any other relevant provisions of federal, state and local law.

SECTION 5. INDEMNIFICATION AND INSURANCE

5.1 Indemnification

(A) General Indemnification. Grantee shall indemnify, defend and hold the City, its officers, officials, City Council, boards, agents and employees, harmless from any action or claim for injury, damage, loss, liability, cost or expense, including court and appeal costs and reasonable attorneys' fees or reasonable expenses, arising from any casualty or accident to Person or property, including, without limitation, copyright infringement, defamation, and all other damages in any way arising out of, or by reason of, any construction, excavation, operation, maintenance, reconstruction, relocation or any other act done under this Franchise by or for Grantee (including

by its agents or its employees), or by reason of any neglect or omission of Grantee, its agents or employees. Grantee shall consult and cooperate with the City while conducting its defense of the City.

(B) **Procedures and Defense.** If an indemnifiable claim or action arises under subsection 5.1(A), the City or any other indemnified party shall promptly tender the defense of the claim to Grantee (which shall be no later than ten (10) days after the City becomes aware of such claim or action), which defense shall be at Grantee's expense. Failure of the City to tender the defense of such claim within the ten (10) day period shall not relieve Grantee of its indemnification obligations under this Franchise unless Grantee can demonstrate material prejudice to a court of competent jurisdiction. The City may participate in the defense of a claim, but if Grantee provides a defense at Grantee's expense, then Grantee shall not be liable for any attorneys' fees, expenses or other costs that City may incur if it chooses to participate in the defense of a claim, unless and until separate representation as described in subsection (D) below is required. In any event, Grantee may not agree to any settlement of claims affecting the City without the City's prior written approval.

(C) **Non-Waiver.** The fact that Grantee carries out any activities under this Franchise through independent contractors shall not constitute an avoidance of or defense to Grantee's duty of defense and indemnification under this subsection.

(D) **Expenses.** If separate representation to fully protect the interests of both parties is or becomes necessary, such as a conflict of interest between the City and the counsel selected by Grantee to represent the City, Grantee shall pay, from the date such separate representation is required, all reasonable expenses incurred by the City in defending itself with regard to any action, suit or proceeding indemnified by Grantee. The City's expenses shall include all reasonable out-of-pocket expenses, such as consultants' and attorneys' fees. For purposes of clarification, Grantee shall have no obligation to pay any expenses of the City under this subsection (D) with respect to any claim of the City or any other indemnified party against Grantee.

5.2 Insurance

(A) Grantee shall maintain in full force and effect at its own cost and expense each of the following policies of insurance:

(1) Commercial General Liability insurance with limits of no less than two million dollars (\$2,000,000) per occurrence and two million dollars (\$2,000,000) general aggregate. Such insurance shall name the City as an additional insured.

(2) Commercial Automobile Liability insurance with minimum combined single limits of two million dollars (\$2,000,000) each occurrence with respect to each of Grantee's owned, hired and non-owned vehicles assigned to or used in the operation of the Cable System.

(3) Umbrella liability insurance in the amount of three million dollars (\$3,000,000).

(B) The insurance shall not be canceled without thirty (30) days' written notice first provided to the City. If the insurance is canceled or materially altered so as to be out of compliance with the requirements of this subsection within the term of this Franchise, Grantee shall provide a replacement policy. Grantee agrees to maintain continuous uninterrupted insurance coverage, in at least the amounts required, for the duration of this Franchise and in the case of Commercial General Liability, for at least one (1) year after expiration of this Franchise.

5.3 Deductibles / Certificate of Insurance

(A) Any deductible of the policies shall not in any way limit Grantee's liability to the City.

(B) Endorsements. All policies shall contain, or shall be endorsed so that:

(1) Grantee's insurance coverage shall be primary insurance with respect to the City. Any insurance or self-insurance maintained by the City shall be in excess of Grantee's insurance and shall not contribute to it; and

(2) Grantee's insurance shall apply separately to each insured against whom a claim is made or lawsuit is brought, except with respect to the limits of the insurer's liability.

(C) Acceptability of Insurers. The insurance obtained by Grantee shall be placed with insurers with a Best's rating of no less than "A VII."

(D) Verification of Coverage. Grantee shall furnish the City with certificates of insurance and endorsements or a copy of the page of the policy reflecting blanket additional insured status. The certificates and endorsements for each insurance policy are to be signed by a Person authorized by that insurer to bind coverage on its behalf. The certificates and endorsements for each insurance policy are to be on standard forms or such forms as are consistent with standard industry practices.

SECTION 6. CUSTOMER SERVICE

Grantee shall comply with the Customer Service Standards as set forth in Exhibit A to this Franchise, which are incorporated herein by reference.

SECTION 7. GENERAL RIGHT-OF-WAY USE AND CONSTRUCTION

7.1 Construction Standards and Requirements

The Cable System shall be installed, located, erected, constructed, reconstructed, replaced, removed, repaired, maintained and operated in accordance with good engineering practices performed by experienced maintenance and construction personnel.

7.2 Safety

Grantee shall at all times employ ordinary care and shall use commonly accepted methods and devices for preventing failures and accidents which are likely to cause damage.

7.3 Network Technical Requirements

The Cable System shall be designed, constructed and operated so as to meet those technical standards adopted by the FCC relating to Cable Systems contained in part 76 of the FCC's rules and regulations as may be amended from time to time.

7.4 General Conditions

Grantee shall have the right to utilize existing poles, conduits and other facilities whenever possible, and shall not construct or install any new, different, or additional poles, conduits, or other facilities on public property provided Grantee is able to access existing poles, conduits, or other facilities on commercially reasonable terms and conditions.

7.5 Underground Construction

The facilities of Grantee shall be installed underground in those areas of the Franchise Area where existing telephone and electric services are both underground at the time of system construction. In areas where either telephone or electric utility facilities are installed aerially at the time of Cable System construction, Grantee may install its facilities aerially with the understanding that at such time as the existing aerial facilities are required to be placed underground by Grantor, Grantee shall likewise place its facilities underground. In the event Grantor or any agency thereof directly or indirectly reimburses any utility for the placement of cable underground or the movement of cable, Grantee shall be similarly reimbursed.

7.6 Restoration of Property

(A) Grantee shall, at its own expense, promptly restore any damage or disturbance caused to the Right-of-Way or other public property as a result of its operation, construction, repair, upgrade, maintenance or removal of the Cable System to a condition reasonably comparable to the condition immediately prior to such damage or disturbance. Grantee shall use its best efforts to complete the restoration within seventy-two (72) hours after completion of the work that caused the damage, considering the nature of the work that must be performed and weather conditions. Other than minor damage that occurs as the normal result of operation, construction, repair, upgrade, maintenance or removal of the Cable System, if Grantee damages any public property belonging to the City in the Franchise Area, Grantee shall promptly notify the City.

(B) Grantee shall warrant any restoration work performed by or for Grantee in the Right-of-Way or on other public property if and as required by any generally applicable law. If restoration is not satisfactorily performed by Grantee within a reasonable time, the City may, after prior notice to Grantee, or without notice where the disturbance or damage may create a risk to public health or safety, cause the repairs to be made and recover the cost of those repairs from

Grantee. Within thirty (30) days of receipt of an itemized list of those costs, including the costs of labor, materials and equipment, and attorneys' fees, Grantee shall pay the City.

7.7 Tree Trimming

Grantee or its designee shall have the authority to trim trees on public property at its own expense as may be necessary to protect its wires and facilities, upon obtaining prior written City approval, if required by the generally applicable and non-discriminatory requirements of the City.

7.8 Relocation for Grantor

Grantee shall, upon receipt of reasonable advance written notice, to be not less than ten (10) business days, protect, support, temporarily disconnect, relocate, or remove any property of Grantee when lawfully required by Grantor pursuant to its Police Powers. Grantee shall be responsible for any costs associated with these obligations to the same extent all other users of Rights-of-Way are responsible for the costs related to the relocation of their facilities.

7.9 Relocation for a Third Party

Grantee shall, on the request of any Person holding a lawful permit issued by Grantor, protect, support, raise, lower, temporarily disconnect, relocate in or remove from the Rights-of-Way as necessary any property of Grantee, provided that the expense of such is paid by any such Person benefiting from the relocation and Grantee is given reasonable advance written notice to prepare for such changes. Grantee may require such payment in advance. For purposes of this subsection, "reasonable advance written notice" shall be no less than ten (10) business days in the event of a temporary relocation and no less than one hundred twenty (120) days for a permanent relocation.

7.10 Reimbursement of Costs

If funds are available to any Person using the Rights-of-Way for the purpose of defraying the cost of any of the foregoing, Grantor shall reimburse Grantee in the same manner in which other Persons affected by the requirement are reimbursed. If funds are controlled by another governmental entity, Grantor shall make application for such funds on behalf of Grantee.

7.11 Emergency Use

Grantee shall comply with 47 U.S.C. § 544(g) and all regulations issued pursuant thereto with respect to an Emergency Alert System ("EAS"). If the Grantee provides EAS operational access to Grantor, Grantor shall permit only appropriately trained and authorized Persons to operate the EAS equipment and shall take reasonable precautions to prevent any use of Grantee's Cable System in any manner that results in an inappropriate use thereof, or any loss or damage to the Cable System. Grantor shall hold Grantee, its employees, officers and assigns harmless from any claims or costs arising out of Grantor's use of the EAS, including, but not limited to, reasonable attorneys' fees and costs.

7.12 Minimal Interference

Unless otherwise approved by the City, Grantee's Cable System shall be constructed and maintained in such manner as not to interfere with sewers, water pipes, or any other previously located property of the City, or with any other pipes, wires, conduits, pedestals, structures, or other facilities that may have been previously laid in the Rights-of-Way by, or under, the City's authority. In the event of such interference, the City may require the removal or relocation of Grantee's lines, cables, equipment and other appurtenances from the property in question at Grantee's expense.

7.13 Discontinuing Use

(A) Subject to Grantee's rights pursuant to subsection 9.2(C), whenever Grantee intends to permanently abandon an above-ground facility of the Cable System within the Rights-of-Way, Grantee shall submit to the City a complete description of the facility and the date on which Grantee intends to discontinue using the facility. Notwithstanding Grantee's request that any such facility remain in place, the City in the exercise of its Police Powers may require Grantee to remove or modify the facility such that it is not visible or an obstruction in the Right-of-Way. In such event, Grantee shall (1) complete such removal or modification in accordance with a reasonable schedule set by the City, subject to subsection 11.1, and (2) until such time as Grantee removes or modifies the facility as directed by the City, or until the rights to and responsibility for the facility are accepted by another Person having authority to construct and maintain such facility, Grantee shall be responsible for all necessary repairs and relocations of the facility, as well as maintenance of the Right-of-Way, in the same manner and degree as if the facility were in active use, and Grantee shall retain all liability for such facility. If Grantee is not willing to comply with the foregoing requirements, the City may remove or require removal of the facility at issue and charge Grantee for all the costs and attorneys' fees associated with such removal.

(B) If Grantee permanently abandons any facilities, the City may choose to use such facilities for any purpose whatsoever including, but not limited to, Access purposes.

7.14 Inspection of Construction and Facilities

The City may inspect any of Grantee's facilities, equipment or construction at any time upon at least forty-eight (48) hours' notice, or, in case of emergency, upon demand without prior notice. The City shall have the right to charge generally applicable inspection fees therefore.

7.15 Work of Contractors and Subcontractors

Grantee's contractors and subcontractors shall be licensed and bonded in accordance with the City's generally applicable ordinances, regulations and requirements. Work by contractors and subcontractors is subject to the same restrictions, limitations and conditions as if the work were performed by Grantee. Grantee shall be responsible for all work performed by its contractors and subcontractors.

SECTION 8. CABLE SERVICE AVAILABILITY

8.1 Provision of Cable Service

(A) In General. Grantee shall install Cable Service within the timeframes set forth in Exhibit A to potential Subscribers requesting a Standard Installation within the Franchise Area. A "Standard Installation" is an installation requiring less than or equal to a one hundred twenty-five (125) foot aerial drop from the nearest point of access on the Right-of-Way from which the Cable System is designed to service the location and connecting to an inside wall for Subscribers. Grantee may impose additional charges for non-standard installations computed according to a non-discriminatory methodology for such installations (each, a "Non-Standard Installation").

(B) Required Extensions of the Cable System. Whenever Grantee receives a request from a potential Subscriber in a contiguous unserved area of the Franchise Area where there are at least twenty-five (25) residences within 5,280 cable-bearing strand feet from the nearest accessible tie-in point to Grantee's existing cable facilities which are to be extended, it shall extend its Cable System to such potential Subscribers at no cost to said potential Subscribers for the Cable System extension, other than the published Standard/Non-Standard Installation fees charged to similarly-situated potential Subscribers.

(C) Subscriber Charges for Extensions of the Cable System. No potential Subscriber shall be refused Cable Service arbitrarily. However, if an area does not meet the density requirements of subsection 8.1(B) above, Grantee shall only be required to extend the Cable System to the Rights-of-Way in that area if the potential Subscribers are willing to pay the capital costs of extending the Cable System and any applicable Non-Standard Installation charges associated with providing Cable Service. Grantee may require that payment of the capital contribution in aid of construction borne by such potential Subscribers be paid in advance. Subscribers shall also be responsible for any Standard or non-Standard Installation charges to extend the Cable System from the tap to the residence. Such cost estimates shall be submitted to and accepted by the potential Subscriber(s) in writing before any Cable System extension or installation is required. Notwithstanding the foregoing, including the payment in aid contemplated by this subsection 8.1(C), Grantee shall not be obligated to provide Cable Service to any area where it is financially or technically infeasible to do so, or to any future annexed area of the City which is (1) not contiguous to the area then served by Grantee or (2) already served by another wireline video service provider.

8.2 Annexation

Grantor shall promptly provide written notice to Grantee of its annexation of any territory which is being provided Cable Service by Grantee or its affiliates. Such annexed area will be subject to the provisions of this Franchise upon sixty (60) days' written notice from Grantor, subject to the conditions set forth below. Grantor shall also notify Grantee in writing of all new street address assignments or changes within the Franchise Area. Grantee shall within ninety (90) days after receipt of the annexation notice, pay Grantor franchise fees on revenue received from the operation of the Cable System to provide Cable Services in any area annexed by Grantor if

Grantor has provided a written annexation notice that includes the addresses that will be moved into the Franchise Area in an Excel format or in a format that will allow Grantee to add the addresses to its billing system. If the annexation notice does not include the addresses that will be moved into the Franchise Area, Grantee shall pay franchise fees within ninety (90) days after it receives the annexed addresses as set forth above. In any audit of Franchise Fees due under this Franchise, Grantee shall not be liable for Franchise Fees on annexed areas unless and until Grantee has received notification and information that meets the standards set forth in this subsection.

SECTION 9. FRANCHISE VIOLATIONS

9.1 Procedure for Remedying Franchise Violations

(A) Notice of Violation. If Grantor believes that Grantee has not complied with the terms of the Franchise, Grantor shall first informally discuss the matter with Grantee. If these discussions do not lead to resolution of the problem, Grantor shall notify Grantee in writing of the exact nature of the alleged noncompliance (the "Violation Notice").

(B) Grantee's Right to Cure or Respond. Grantee shall have thirty (30) days from receipt of the Violation Notice to (i) respond to Grantor, contesting the assertion of noncompliance, or (ii) to cure such default, or (iii) if, by the nature of default, such default cannot be cured within the thirty (30) day period, initiate reasonable steps to remedy such default and notify Grantor of the steps being taken and the projected date that they will be completed.

(C) Public Hearing. If Grantee fails to respond to the Violation Notice received from Grantor, or if the default is not remedied within the cure period set forth above, the City shall schedule a public hearing if it intends to continue its investigation into the default. Grantor shall provide Grantee at least twenty (20) days prior written notice of such hearing, which specifies the time, place and purpose of such hearing. At the hearing, the City shall give Grantee an opportunity to state its position on the matter, present evidence and question witnesses, after which it shall determine whether or not the Franchise shall be revoked. The public hearing shall be on the record and a written transcript shall be made available to Grantee within ten (10) business days. The decision of the City Council shall be made in writing and shall be delivered to Grantee. Grantee may appeal such determination to an appropriate court, which shall have the power to review the decision of the City Council *de novo*. Grantee may continue to operate the Cable System until all legal appeals procedures have been exhausted.

(D). Enforcement. Subject to applicable federal and state law, in the event Grantor, after the hearing set forth above, determines that Grantee is in default of any provision of the Franchise, Grantor may:

- (1) Seek specific performance of any provision, which reasonably lends itself to such remedy; or
- (2) Commence an action at law for monetary damages or seek other equitable relief; or

(3) In the case of a default of a material provision of the Franchise, seek to revoke the Franchise in accordance with subsection 9.2 below.

9.2 Revocation

(A) Prior to revocation or termination of the Franchise, Grantor shall give written notice to Grantee of its intent to revoke the Franchise on the basis of a pattern of noncompliance by Grantee, including one or more instances of noncompliance with the Franchise or breach of a material provision of the Franchise. The notice shall set forth the exact nature of the noncompliance or breach. Grantee shall have forty-five (45) days from such notice to either object in writing and to state its reasons for such objection and provide any explanation or to cure the alleged noncompliance or breach. If Grantor has not received a satisfactory response from Grantee, it may then seek to revoke the Franchise at a public hearing. Grantee shall be given at least thirty (30) days prior written notice of such public hearing, specifying the time and place of such hearing and stating its intent to revoke the Franchise. The public hearing shall be conducted in accordance with the requirements of this Franchise.

(B) Notwithstanding the above provisions, Grantee reserves all of its rights under federal law or regulation.

(C) Upon revocation of the Franchise, Grantee may remove the Cable System from the Rights-of-Way or abandon the Cable System in place.

(D) The determination as to whether a violation of this Franchise has occurred shall be within the discretion of the City, provided that any such final determination may be subject to appeal to a court of competent jurisdiction under applicable law.

9.3 No Monetary Recourse Against the City

Grantee shall not have any monetary recourse against the City or its officers, officials, City Council, commissions, agents or employees for any loss, costs, expenses or damages arising out of any provision or requirement of this Franchise or the enforcement thereof, in accordance with the provisions of applicable federal, state and local law. The rights of the City under this Franchise are in addition to, and shall not be read to limit, any immunities the City may enjoy under federal, state or local law.

9.4 Alternative Remedies

No provision of this Franchise shall be deemed to bar the right of the City to seek or obtain judicial relief from a violation of any provision of the Franchise or any rule, regulation, requirement or directive promulgated thereunder. Neither the existence of other remedies identified in this Franchise nor the exercise thereof shall be deemed to bar or otherwise limit the right of the City to recover monetary damages for such violations by Grantee, or to seek and obtain judicial enforcement of Grantee's obligations by means of specific performance, injunctive relief or mandate, or any other remedy at law or in equity.

SECTION 11. FRANCHISE RENEWAL AND TRANSFER

10.1 Renewal

Grantor and Grantee agree that any proceedings undertaken by Grantor that relate to the renewal of Grantee's Franchise shall be governed by and comply with the provisions of Section 626 of the Cable Act, or any such successor statute.

10.2 Transfer of Ownership or Control

(A) The Cable System and Franchise granted hereunder shall not be assigned or transferred, other than by operation of law or to an entity controlling, controlled by, or under common control with Grantee, without the prior written consent of Grantor, such consent not to be unreasonably withheld or delayed. No such consent shall be required, however, for a transfer in trust, by mortgage, by other hypothecation, or by assignment of any rights, title, or interest of Grantee in the Franchise or Cable System to secure indebtedness. Within thirty (30) days of receiving a request for sale or transfer, Grantor shall notify Grantee in writing of any additional information it reasonably requires to determine the legal, financial and technical qualifications of the transferee and whether there are any uncured defaults. If Grantor has not taken action on Grantee's request for transfer within one hundred twenty (120) days after receiving such request and complete information, consent by Grantor shall be deemed given.

(B) Grantee shall promptly notify the City of any actual or proposed change in, or transfer of, or acquisition by any other party of control of Grantee. The word "control" as used herein is not limited to majority stock ownership but includes actual working control in whatever manner exercised. Every change, transfer or acquisition of control of Grantee shall make this Franchise subject to cancellation unless and until the City shall have consented in writing thereto subject to the exceptions provided above.

SECTION 11. MISCELLANEOUS PROVISIONS

11.1 Force Majeure

Grantee shall not be held in default under, or in noncompliance with the provisions of the Franchise, nor suffer any enforcement or penalty relating to noncompliance or default, where such noncompliance or alleged defaults occurred or were caused by circumstances reasonably beyond the ability of Grantee to anticipate and control. This provision includes, but is not limited to, severe or unusual weather conditions, fire, flood, or other acts of God, strikes, work delays caused by failure of utility providers to service, maintain or monitor their utility poles to which Grantee's Cable System is attached, as well as unavailability of materials and/or qualified labor to perform the work necessary.

11.2 Minor Violations

Furthermore, the parties hereby agree that it is not Grantor's intention to subject Grantee to forfeitures or revocation of the Franchise for violations of the Franchise where the violation was a good faith error that resulted in no or minimal negative impact on the Subscribers within the Franchise Area or for a minor Franchise violation that is not repeated.

11.3 Action of Parties

In any action by Grantor or Grantee that is mandated or permitted under the terms hereof, such party shall act in a reasonable, expeditious and timely manner. Furthermore, in any instance where approval or consent is required under the terms hereof, such approval or consent shall not be unreasonably withheld.

11.4 Equal Protection

No Cable System shall be allowed to occupy or use the Rights-of-Way or be allowed to operate without a Cable System Franchise, be it a local, state or federal authorization. If any other wireline provider of Cable Services or video services (without regard to the technology used to deliver such services) is lawfully authorized by Grantor or by any other state or federal governmental entity to provide such services using facilities located wholly or partly in the Rights-of-Way, Grantor shall within thirty (30) days of a written request from Grantee, modify this Franchise to ensure that the obligations applicable to Grantee are no more burdensome than those imposed on the new competing provider so long as the other provider is actually offering wireline Cable Services. As an alternative to the Franchise modification request, Grantee shall have the right and may choose to have this Franchise with the Grantor be deemed expired ninety (90) days after written notice to the Grantor. Nothing in this Franchise shall impair the right of Grantee to terminate this Franchise subject to the preceding notice provision and, at Grantee's option, negotiate a renewal or replacement franchise, license, consent, certificate or other authorization with any appropriate government entity. Nothing in this subsection shall be deemed a waiver of any remedies available to Grantor or Grantee under federal, state or municipal law, including but not limited to Section 625 of the Cable Act (47 U.S.C. § 545).

11.5 Notices

Unless otherwise provided by federal, state or local law, all notices pursuant to this Franchise shall be in writing and shall be deemed to be sufficiently given upon delivery to a Person at the address set forth below, or by U.S. certified mail, return receipt requested, or nationally or internationally recognized courier service such as Federal Express. Grantee shall provide thirty (30) days' written notice of any changes in rates, programming services or Channel positions using any reasonable written means. As set forth above, notice served upon the parties shall be delivered or sent to:

Grantor: City of Cheyenne
Attn: Clerk
2101 O'Neil Avenue
Cheyenne, WY 82001

Grantee: Clarity Telecom, LLC d/b/a Vast Broadband
7979 E. Tufts Avenue, Suite 850
Denver, CO 80237

Copy to: Clarity Telecom, LLC d/b/a Vast Broadband
c/o C T Corporation System
Registered Agent
1908 Thomes Avenue
Cheyenne, WY 82001

11.6 Severability

If any section, subsection, sentence, clause, phrase, or portion of this Franchise is, for any reason, held invalid or unconstitutional by any court of competent jurisdiction, such section, subsection, sentence, clause, phrase, or portion shall be deemed a separate, distinct and independent provision and such holding shall not affect the validity of the remaining parts of this Franchise.

11.7 Entire Agreement / Amendments

This Franchise constitutes the entire agreement between Grantee and Grantor and except as provided in subsection 2.3(B) supersedes all prior agreements, representations or understandings (whether written or oral) of the parties regarding the subject matter hereof. Any changes, modifications or amendments to this Franchise must be made in writing, signed by Grantor and Grantee.

11.8 De Novo Review

Any determination by Grantor regarding the interpretation or enforcement of this Franchise shall be subject to de novo judicial review.

11.9 No Third-Party Beneficiaries

Nothing in this Franchise is intended to confer third-party beneficiary status on any Person to enforce the terms of this Franchise.

11.10 Descriptive Headings

The captions, headings and titles of the sections and subsections of this Franchise are for reference purposes only and shall not affect the meaning or interpretation of the text herein.

11.11 Publication Costs to be Borne by Grantee

Grantee shall reimburse the City for all costs incurred in publishing this Franchise.

11.12 Binding Effect

This Franchise shall be binding upon the parties hereto, their permitted successors and assigns.

11.13 No Joint Venture

Nothing herein shall be deemed to create a joint venture or principal-agent relationship between the parties, and neither party is authorized to, nor shall either party act toward third persons or the public in any manner which would indicate any such relationship with the other.

11.14 Waiver

The failure of the City at any time to require performance by Grantee of any provision hereof shall in no way affect the right of the City hereafter to enforce the same. Nor shall the waiver by the City of any breach of any provision hereof be taken or held to be a waiver of any succeeding breach of such provision, or as a waiver of the provision itself or any other provision.

11.15 Jurisdiction and Governing Law

Venue for any judicial dispute between the City and Grantee arising under or out of this Franchise shall be in the District Court, First Judicial District, Laramie County in Cheyenne, Wyoming, or in the United States District Court for the District of Wyoming in Cheyenne. This Franchise shall be governed, construed and enforced in accordance with the laws of the State of Wyoming and federal law.

IN WITNESS WHEREOF, this Franchise is signed in the name of the City of Cheyenne, Wyoming, this _____ day of _____, 2021.

CITY OF CHEYENNE, WYOMING

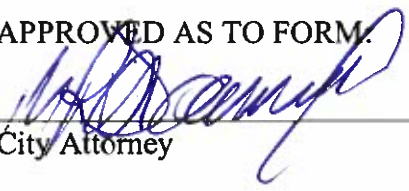
By: _____
Patrick Collins, Mayor

(SEAL)

Attest:

Kristina F. Jones, City Clerk

APPROVED AS TO FORM.



City Attorney

Accepted and approved this _____ day of _____, 2021.

CLARITY TELECOM, LLC, d/b/a Vast Broadband

By: _____

Name: _____

Title: _____

EXHIBIT A

CUSTOMER SERVICE STANDARDS

These customer service standards (these “Standards”) are part of the Cable Franchise Agreement (“Franchise”) entered into by and between the City of Cheyenne, Wyoming (hereinafter “Grantor” or the “City”) and Clarity Telecom, LLC, d/b/a Vast Broadband (hereinafter “Grantee”). References to the Franchise in these Standards are references to the main body of the Franchise.

SECTION. 1. POLICY.

Grantee should be permitted the option and autonomy to first resolve complaints from Subscribers or potential Subscribers without delay and interference from the City. Where a given complaint is not addressed by Grantee to such Person’s satisfaction, the City may intervene, if requested to do so by such Person.

These Standards are intended to be of general application; however, Grantee shall be relieved of any obligations hereunder if it is unable to perform due to circumstances described in subsection 11.1 of the Franchise. Grantee is free to exceed these Standards for the benefit of the Subscribers and such shall be considered compliance with these Standards.

In the event of a conflict between these Standards and the Franchise, the Franchise shall control.

Grantee is responsible to the City for ensuring that its agents, contractors and subcontractors comply with all applicable provisions of these Standards.

SECTION 2. DEFINITIONS.

When used in these Standards, any capitalized words, phrases, and terms shall have the meanings as provided in the Franchise unless separately defined in these Standards. When used in these Standards, “customer” means a Subscriber or potential Subscriber, as applicable.

SECTION 3. CUSTOMER SERVICE.

3.1. Cable System Office Hours and Telephone Availability.

(i) Grantee shall maintain a local, toll-free or collect call telephone access line which will be available to Subscribers 24 hours a day, seven days a week.

(A) Trained company representatives will be available to respond to customer telephone inquiries during Normal Business Hours. “Normal Business Hours” means those hours during which most similar businesses in the community are open to serve customers. In all cases, “Normal Business Hours” must include some evening hours at least one night per week and/or some weekend hours.

(B) After Normal Business Hours, the access line may be answered by a service or an automated response system, including an answering machine. Inquiries received after Normal Business Hours must be responded to by a trained company representative on the next business day.

(ii) Under Normal Operating Conditions, telephone answer time by a customer representative, including wait time, shall not exceed thirty (30) seconds when the connection is made. "Normal Operating Conditions" means those service conditions which are within the control of Grantee. Those conditions which are not within the control of Grantee include, but are not limited to, natural disasters, civil disturbances, power outages, telephone network outages, and severe or unusual weather conditions. Those conditions which *are* ordinarily within the control of the cable operator include, but are not limited to, special promotions, pay-per-view events, rate increases, regular peak or seasonal demand periods, and maintenance or upgrade of the Cable System. If the call needs to be transferred, transfer time shall not exceed thirty (30) seconds. These standards shall be met no less than ninety percent (90%) of the time under Normal Operating Conditions, measured on a quarterly basis.

(iii) Grantee will not be required to acquire equipment or perform surveys to measure compliance with the telephone answering standards set forth above, unless a historical record of complaints indicates a clear failure to comply.

(iv) Under Normal Operating Conditions, customers will receive a busy signal less than three percent (3%) of the time.

(v) Customer service center and bill payment locations will be open at least during Normal Business Hours and will be located within the Franchise Area.

3.2. Installations, Outages and Service Calls.

Under Normal Operating Conditions, each of the following four (4) standards will be met no less than ninety-five percent (95%) of the time measured on a quarterly basis:

(i) Standard Installations will be performed within seven (7) business days after an order has been placed unless the customer agrees to a later date for installation.

(ii) Excluding conditions beyond the control of a Grantee, Grantee will begin working on Service Interruptions promptly and in no event later than twenty-four (24) hours after the interruption becomes known. "Service Interruption" means the loss of picture or sound on one or more Channels. Grantee must begin actions to correct other service problems the next business day after notification of the service problem.

(iii) The appointment window alternatives for installations, service calls, and other installation activities will be either a specific time or, at a maximum, a four-hour time block during Normal Business Hours. Grantee may schedule service calls and other installation activities outside of Normal Business Hours for the express convenience of the customer.

(iv) Grantee may not cancel an appointment with a customer after the close of business on the business day prior to the scheduled appointment.

(v) If Grantee's representative is running late for an appointment with a customer and will not be able to keep the appointment as scheduled, the customer will be contacted. The appointment will be rescheduled, as necessary, at a time mutually agreed upon by the customer and the Grantee for the convenience of the customer.

3.3. Communications between Grantee and Subscribers.

(i) Refunds. Refund checks will be issued promptly, but no later than either

(A) The customer's next billing cycle following resolution of the request or thirty (30) days, whichever is earlier, or

(B) The return of the equipment supplied by Grantee if service is terminated.

(ii) Credits. Credits for service will be issued no later than the customer's next billing cycle following the determination that a credit is warranted.

3.4. In the event of a conflict between subsections 3.1. – 3.3. and 47 C.F.R. § 76.309, as it may be amended, the latter shall control. In the event of a conflict between subsections 3.1. – 3.3. and any state law addressing the same subject matter and applying to Grantee, the latter shall control.

3.5. General Information.

(i) Grantee shall provide written information on each of the following areas at the time of installation of Cable Service, at least annually to all Subscribers, and at any time upon request:

(A) Cable Services offered;

(B) Prices and options for Cable Service and conditions of subscription to Cable Service;

(C) Installation and service maintenance policies;

(D) Instructions on how to use the Cable Service;

(E) Channel positions of programming carried on the Cable System; and

(F) Billing and complaint procedures, including the address and telephone number of the City's office for receiving complaints from Grantee's Subscribers.

(ii) Subscribers shall be advised of the procedures for resolution of complaints about the quality of the Cable Service delivered by Grantee, including the address of the responsible person at the City.

(iii) In the event of a conflict between subsections 3.5.(i) – (ii) and 47 C.F.R. § 76.1602, as it may be amended, the latter shall control. In the event of a conflict between subsections 3.5.(i) – (ii) and any state law addressing the same subject matter and applying to Grantee, the latter shall control.

3.6. Rate and Cable Service Changes.

(i) Customers will be notified of any changes in rates, programming services or Channel positions as soon as possible in writing. Notice must be given to Subscribers a minimum of thirty (30) days in advance of such changes if the change is within the control of Grantee. In addition, Grantee shall notify Subscribers thirty (30) days in advance of any significant changes in the other information required by 47 C.F.R. § 76.1602.

(ii) In addition to the requirement of subsection 3.6.(i) regarding advance notification to customers of any changes in rates, programming services or Channel positions, Grantee shall give thirty (30) days written notice to both Subscribers and the City before implementing any rate or Cable Service change. Such notice shall state the precise amount of any rate change and briefly explain in readily understandable fashion the cause of the rate change (e.g., inflation, change in external costs or the addition/deletion of Channels). When the change involves the addition or deletion of Channels, each Channel added or deleted must be separately identified. For purposes of the carriage of digital broadcast signals, Grantee need only identify for Subscribers, the television signal added and not whether that signal may be multiplexed during certain dayparts.

(iii) Grantee shall provide written notice to a subscriber of any increase in the price to be charged for the basic service tier or associated equipment at least thirty (30) days before any proposed increase is effective. If the equipment is provided to a Subscriber without charge pursuant to 47 C.F.R. § 76.630, Grantee shall provide written notice to the Subscriber at least thirty (30) days but no more than sixty (60) days before the increase is effective. The notice should include the price to be charged, and the date that the new charge will be effective, and the name and address of the City.

(iv) To the extent Grantee is required to provide notice of Cable Service and rate changes to Subscribers, Grantee may provide such notice using any reasonable written means at its sole discretion.

(v) Notwithstanding any other provision of these Standards, Grantee shall not be required to provide prior notice of any rate change that is the result of a regulatory fee, Franchise Fee, or any other fee, tax, assessment, or charge of any kind imposed by any federal agency, state, or the City on the transaction between Grantee and the Subscriber.

(vi) In the event of a conflict between subsections 3.6.(i) – (v) and 47 C.F.R. § 76.1603, as it may be amended, the latter shall control. In the event of a conflict between subsections 3.6.(i) – (v) and any state law addressing the same subject matter and applying to Grantee, the latter shall control.

3.7. Information on Subscriber Bills.

(i) Bills must be clear, concise and understandable. Bills must be fully itemized, with itemizations including, but not limited to, basic and premium Cable Service charges and equipment charges. Bills will also clearly delineate all activity during the billing period, including optional charges, rebates and credits.

(ii) In case of a billing dispute, Grantee must respond to a written complaint from a Subscriber within thirty (30) days.

(iii) In the event of a conflict between subsections 3.7.(i) – (ii) and 47 C.F.R. § 76.1619, as it may be amended, the latter shall control. In the event of a conflict between subsections 3.7.(i) – (ii) and any state law addressing the same subject matter and applying to Grantee, the latter shall control.

3.8. No Discrimination.

Grantee shall not deny Cable Service or otherwise discriminate against Subscribers or general citizens on the basis of race, color, religion, national origin, age, sex or any other status protected by applicable law.

3.9. Protection of Subscriber Privacy.

(i) At the time of entering into an agreement to provide Cable Service to a Subscriber and at least once a year thereafter, Grantee shall provide notice in the form of a separate, written statement to such Subscriber which clearly and conspicuously informs the Subscriber of:

(A) the nature of Personally Identifiable Information collected or to be collected with respect to the Subscriber and the nature of the use of such information. “Personally Identifiable Information” does not include any record of aggregate data which does not identify particular Persons.

(B) the nature, frequency, and purpose of any disclosure which may be made of such information, including an identification of the types of Persons to whom the disclosure may be made;

(C) the period during which such information will be maintained by Grantee;

(D) the times and place at which the Subscriber may have access to such information in accordance with subsection (iv); and

(E) the limitations provided by this section with respect to the collection and disclosure of information by Grantee and the right of the Subscriber under federal law to enforce such limitations.

(ii) Except as provided in the following sentence, Grantee shall not use the Cable System to collect Personally Identifiable Information concerning any Subscriber without the prior written or electronic consent of the Subscriber concerned. Grantee may use the Cable System to collect such information in order to:

- (A) obtain information necessary to render a Cable Service or other service provided by Grantee to the Subscriber; or
- (B) detect unauthorized reception of Cable Services.

(iii) Except as provided in the following sentence, Grantee shall not disclose Personally Identifiable Information concerning any Subscriber without the prior written or electronic consent of the Subscriber concerned and shall take such actions as are necessary to prevent unauthorized access to such information by a Person other than the Subscriber or Grantee. Grantee may disclose such information if the disclosure is:

- (A) necessary to render, or conduct a legitimate business activity related to, a Cable Service or other service provided by Grantee to the Subscriber;
- (B) subject to subsection 47 U.S.C. 551(h), made pursuant to a court order authorizing such disclosure, if the Subscriber is notified of such order by the Person to whom the order is directed;
- (C) a disclosure of the names and addresses of Subscribers to any Cable Service or other service, if:
 - (1) Grantee has provided the Subscriber the opportunity to prohibit or limit such disclosure, and
 - (2) the disclosure does not reveal, directly or indirectly, the:
 - (I) extent of any viewing or other use by the Subscriber of a Cable Service or other service provided by Grantee, or
 - (II) the nature of any transaction made by the Subscriber over the Cable System; or
- (D) to a government entity as authorized under federal law, except that such disclosure shall not include records revealing the Subscriber's selection of video programming from Grantee.

(iv) A Subscriber shall be provided access to all Personally Identifiable Information regarding that Subscriber which is collected and maintained by Grantee. Such information shall be made available to the Subscriber at reasonable times and at a convenient place designated by Grantee. Subscribers shall be provided reasonable opportunity to correct any error in such information.

(v) Grantee shall destroy Personally Identifiable Information if the information is no longer necessary for the purpose for which it was collected and there are no pending requests or orders for access to such information under subsection (iv) or pursuant to a court order.

(vi) In the event of a conflict between subsections 3.9.(i) – (v) and 47 U.S.C. § 551, as it may be amended, the latter shall control. In the event of a conflict between subsections 3.9.(i) – (v) and any state law addressing the same subject matter and applying to Grantee, the latter shall control

SECTION 4. COMPLAINT PROCEDURE

4.1. Complaints to the City.

(i) Any Customer who is dissatisfied with any proposed response of Grantee or who has not received a response within the thirty (30) day period as required with respect to an unresolved complaint in Section 3.7.(ii) shall be entitled to have the complaint reviewed by the City or its designee.

(ii) The Customer may initiate the review by filing a written complaint together with Grantee's written response, if any, with the City.

(iii) The Customer shall make such filing and notification within thirty (30) days of receipt of Grantee's response or, if no response has been provided, within forty-five (45) days after filing the original complaint with Grantee. The Customer shall notify Grantee that a complaint has been filed with the City by mailing a copy of the complaint to Grantee by certified mail, return receipt requested.

(iv) Grantee shall file a written response to the complaint with the City within fifteen (15) days of receipt of a copy of the complaint from the Customer.

(v) If the City or its designee decides that further evidence is warranted, the City or its designee may require Grantee and the Customer to submit, within ten (10) days of notice thereof, a written statement of the facts and arguments in support of their respective positions.

(vi) Grantee and the Customer shall produce any additional evidence, including any reports from Grantee, which the City or its designee may deem necessary to an understanding and determination of the complaint.

(vii) The City or its designee shall issue a determination within fifteen (15) days after examining the materials submitted, setting forth its basis for the determination.

(viii) The City or its designee may extend these time limits for reasonable cause and may intercede and attempt to negotiate an informal resolution.

(ix) If the City determines that the Customer's written complaint is valid and that Grantee did not provide the complaining Customer with the proper resolution, the City may require Grantee to grant a specific solution in accordance with the Grantee's policies or resolve the matter as otherwise mutually agreed upon by the Grantee and the City. If the City finds that the Customer's written complaint has no validity, the complaint shall be dismissed with no further action being taken.

4.2. Overall Quality of Service. The City may evaluate the overall quality of Customer service provided by Grantee to Customers:

(i) In conjunction with any performance review provided for in the Franchise with the City; and

(ii) At any other time, at its sole discretion based on the number of written Customer complaints received by Grantee and the City, and Grantee's response to those complaints.

4.3. Non-Compliance with Customer Service Standards. Non-compliance with any provision of these Standards is a violation of the Franchise.

SECTION 5. MISCELLANEOUS

5.1. Severability. Should any section, subsection, paragraph, sentence, clause, phrase, term, or provision of these Standards be determined to be illegal, invalid, or unconstitutional by any court or agency of competent jurisdiction, such determination shall have no effect on the validity of any other section, subsection, paragraph, sentence, clause, phrase, term, or provision of these Standards, each of which shall remain in full force and effect.

5.2. Non-Waiver. Failure of the City to enforce any provision of these Standards shall not operate as a waiver of said provision, or any other provision of these Standards.

5.3 Identification. All employees of Grantee and its contractors or subcontractors who are in personal contact with Subscribers shall have identification cards with their name and photograph. Every vehicle of Grantee and its contractors or subcontractors shall be clearly identified as working for Grantee.